

**IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH**

CRM-M-33806-2026

Date of decision: 12.06.2026

Love Gill

...Petitioner

Versus

State of Punjab

...Respondent

CORAM: HON'BLE MR. JUSTICE DEEPAK GUPTA

Present: Mr. Amrish Singh, Advocate for the petitioner.

DEEPAK GUPTA, J. (ORAL)

By way of the present second petition filed under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the petitioner seeks the concession of anticipatory bail in case FIR No.206 dated 20.12.2025 registered under Sections 126(2), 115(2), 118(1), 109, 191(3) and 190 of the Bharatiya Nyaya Sanhita, 2023 at Police Station Bhargo Camp, District Jalandhar.

2. I have heard learned counsel for the petitioner and perused the paper-book.

3. A perusal of the record reveals that an earlier petition seeking identical relief, bearing CRM-M-32837-2026, was filed by the petitioner and the same came to be dismissed by this Court on 05.06.2026 vide order Annexure P-4. The said order was passed after considering the submissions raised on behalf of the petitioner and the material available on record.

4. Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case and was not present at the spot at the time of occurrence.

5. However, this Court finds no merit in the aforesaid contention.



The plea regarding false implication and absence of the petitioner from the place of occurrence is not a new ground. The same was available to the petitioner and stood considered at the time of dismissal of the earlier anticipatory bail petition. A second or successive petition for anticipatory bail is maintainable only when there is a substantial change in circumstances or emergence of new facts having a material bearing on the claim for pre-arrest bail.

6. In the present case, learned counsel has been unable to point out any subsequent event, fresh circumstance or change in the factual or legal position after dismissal of the earlier petition on 05.06.2026. The present petition is founded on the very same grounds which were available and could be urged at the time of consideration of the earlier petition.

7. It is well settled that successive bail petitions cannot be entertained merely by re-agitating grounds already considered and rejected by the Court. Permitting such a course would amount to seeking review of an earlier order under the guise of a fresh petition, which is impermissible in law.

8. In the absence of any change in circumstances warranting a fresh consideration of the matter, no ground is made out for grant of anticipatory bail.

9. Consequently, finding no merit in the present petition, the same is hereby dismissed.

12.06.2026

Yogesh

(DEEPAK GUPTA)

JUDGE

Whether speaking/reasoned:- Yes/No

Whether reportable:- Yes/No